

26CHCV01514 26CHCV01514

County: los-angeles

Division: Civil Law and Motion

Department: F47

Hearing date: 2026-07-01

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=CHA%2CF47%2C07%2F01%2F2026

Source SHA-256: b3d897dbc8697f020c0a221ff17212001d416f6ffcd051f0daced0dbd2955856

Case Number: 26CHCV01514 Hearing Date: July 1, 2026 Dept: F47

Dept. F47

Date: 7/1/26

Case #26CHCV01514

PETITION TO

COMPEL JOINDER OF MOBILITAS INSURANCE COMPANY OF ARIZONA AND REFUSE ENFORCEMENT
OF UM ARBITRATION AGREEMENT

Petition filed on 6/1/26.

MOVING PARTY: Petitioners Arman Hovhannisyan and Karen
Avagyan

RESPONDING PARTY: Respondent Mobilitas Insurance Company
of Arizona (specially appearing)

NOTICE: ok

RELIEF REQUESTED: An order:

(1) Refusing to enforce the UM arbitration agreement
between Petitioners and Mobilitas Insurance Company of Arizona (Mobilitas) and
ordering the joinder of Mobilitas as a party defendant in this action, pursuant
to CCP 1281.2(c) on the ground that a party to the UM arbitration (Petitioner
Karen Avagyan) is also a party to this pending court action with Mobilitas — a
third party to that action — arising out of the same transaction, with a

possibility of conflicting rulings on common issues of law and fact; and

(2) Granting such other and further relief as the Court deems just and proper.

RULING:

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises from a motor vehicle accident that occurred on 7/2/24. On that date, Plaintiffs/ Petitioners Arman Hovhannisyanyan and Karen Avagyan (collectively, Plaintiffs) were rear seat passengers in a Lyft-dispatched vehicle (Lyft Vehicle), driven by Defendant Strahinja Veljkovic, when an unidentified hit-and-run motorist struck the vehicle on or near the Balboa Blvd. off-ramp from the 118 Freeway in Granada Hills. (Nazaryan Decl. ¶¶2-3). Aftermarket seat covers installed by the driver, Veljkovic, blocked the seatbelt buckle receivers leaving both Plaintiffs unrestrained. (Id. ¶3). As a result of the accident, both Plaintiffs suffered personal injuries. (Id. ¶¶4-5). Hovhannisyanyan had booked the Lyft ride through the Lyft mobile application. (Id. ¶2).

The Lyft Vehicle was covered under a commercial auto policy issued by Respondent Mobilitas Insurance Company of Arizona (Mobilitas) which provided uninsured motorist/underinsured motorist (UM/UIM) bodily coverage with a limit of \$1,000,000. (Nazaryan Decl. ¶6). On 4/7/25, Plaintiffs served a policy limits demand on Mobilitas. (Id. ¶7). On 4/23/25, Mobilitas offered \$43,200 in settlement, accepting only \$22,151.08 in special damages — with the offer addressed to and limited to Avagyan only. Mobilitas made no offer, and has made no offer to date, on Hovhannisyanyan's claim. (Id. ¶8).

On 10/20/25, Plaintiffs served formal UM arbitration demands on Mobilitas pursuant to Insurance Code 11580.2(f) and 11580.2(i). (Nazaryan Decl. ¶9). The parties agreed upon Alyse Golden Berkley as the neutral arbitrator. Id. On 11/21/25, Mobilitas served written discovery and on 12/26/25, Plaintiffs served responses. Id. The arbitration is actively proceeding. Id.

On 4/14/26, Plaintiffs filed this action against Defendants Lyft, Inc. and Veljickovic for negligence, negligence per se, common carrier liability, vicarious liability, and negligent hiring, supervision, and retention arising from the obstructed seatbelts. Mobilitas is not currently named as a defendant in this action.

On 6/1/26, Plaintiff filed the instant petition seeking an order:

(1) Refusing to enforce the UM arbitration agreement between Petitioners and Mobilitas Insurance Company of Arizona (Mobilitas) and ordering the joinder of Mobilitas as a party defendant in this action, pursuant to CCP 1281.2(c) on the ground that a party to the UM arbitration (Petitioner Karen Avagyan) is also a party to this pending court action with Mobilitas — a third party to that action — arising out of the same transaction, with a possibility of conflicting rulings on common issues of law and fact; and

(2) Granting such other and further relief as the Court deems just and proper.

Mobilitas has opposed the petition and Plaintiffs have filed a reply to the opposition.

ANALYSIS

Insurance Code 11580.2(f) requires every automobile liability policy to provide for arbitration of UM coverage disputes. This statutory mandate creates a contractual arbitration subject to the California Arbitration Act (CAA). It has been held that “[t]his law is implicated because the uninsured motorist coverage law requires an automobile liability insurance policy, which is a contract, to provide for arbitration.” *Mercury Insurance Group* (1998) 19 C4th 332, 342; See also *Pilimai* (2006) 39 C4th 133; *Cronus Investments, Inc.* (2005) 35 C4th 376, 393.

CCP 1281.2 provides, in relevant part:

“On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the

agreement refuses to arbitrate that controversy,
the court shall order the petitioner and the respondent to arbitrate the
controversy if it determines that an agreement to arbitrate the controversy
exists, unless it determines that:

. .
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(c) A party to the arbitration
agreement is also a party to a pending court action or special proceeding with
a third party, arising out of the same transaction or series of related
transactions and there is a possibility of conflicting rulings on a common
issue of law or fact. For purposes of this section, a pending court action or
special proceeding includes an action or proceeding initiated by the party
refusing to arbitrate after the petition to compel arbitration has been filed,
but on or before the date of the hearing on the petition. This subdivision
shall not be applicable to an agreement to arbitrate disputes as to the
professional negligence of a health care provider made pursuant to Section
1295.

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If the court determines that a
party to the arbitration is also a party to litigation in a pending court
action or special proceeding with a third party as set forth under subdivision
(c), the court (1) may refuse to enforce the arbitration agreement and may
order intervention or joinder of all parties in a single action or special
proceeding; (2) may order intervention or joinder as to all or only certain
issues; (3) may order arbitration among the parties who have agreed to
arbitration and stay the pending court action or special proceeding pending the
outcome of the arbitration proceeding; or (4) may stay arbitration pending the
outcome of the court action or special proceeding.

Here, the requirements set forth in CCP 1281.2(c) are
met. First, Plaintiffs are parties to
the instant action against Lyft and Veljkovic as well as parties to the
arbitration proceeding with Mobilias, a third party to this action within the
meaning of CCP 1281.2(c). See Prudential
Property & Casualty Insurance Co. (1995) 36 CA4th 275, 279. Second, this action and the UM arbitration

arise from the same 7/2/24 motor vehicle collision. Third, separate proceedings present a substantial possibility of conflicting rulings on issues of comparative fault, seatbelt-enhanced injury, causation and total damages. A possibility of conflicting rulings is all that is necessary. See *Acquire*

II, Ltd. (2013) 213 CA4th 959, 972; *Abaya* (2010) 189 CA4th 1490, 1498-1499; *L.A. Unified School District* (2017) 13 CA5th 471, 484; *Birl* (2009) 172 CA4th 1313, 1319-1321.

Plaintiff Avagyan was a guest passenger in the Lyft Vehicle and did not have a Lyft account. Therefore, Avagyan cannot be compelled to arbitrate her civil claims alleged in this action. (Nazaryan Decl. ¶4). Lyft, who answered the complaint in this action on 5/26/26, has not responded to the petition arguing otherwise.

In opposition to the petition, Mobilitas fails to address the application of CCP 1281.2(c) and solely argues that the Examinations Under Oath of Plaintiffs, which have not occurred, are a condition precedent to civil liability. Therefore, joinder of Mobilitas in this action is premature. If Plaintiff's ultimately fail to submit to Examinations Under Oath (EUO), they may be precluded from obtaining UM benefits under the policy. However, Mobilitas has failed to establish that ordering its joinder in this action pursuant to CCP 1281.2(c) is precluded merely because Plaintiffs have yet to submit to an EUO. Nor has Mobilitas established that UM proceedings must be stayed until coverage issues are resolved.

However, Plaintiffs may not simply file a First Amended Complaint upon the granting of this motion as indicated in their intent in the motion. (See Motion Memo of Ps&As, p.9:27-28). Since Lyft filed an answer to the complaint on 5/26/26, Plaintiffs must file a properly noticed motion for leave to amend. See CCP 472(a).

CONCLUSION

The motion is granted.
The joinder of Mobilitas Insurance Company of Arizona as a defendant in this action is granted.